Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

SECOND REGULAR SESSION

RESOLUTION NO. 359

RESOLUTION URGING THE BANGSAMORO GOVERNMENT, THROUGH THE BANGSAMORO HUMAN RIGHTS COMMISSION (BHRC) AND THE MINISTRY OF TRADE, INVESTMENT AND TOURISM (MTIT), TO BRING JUSTICE TO THE AFFECTED MUSLIM CONSUMERS OF THE PRACTICE OF SOME VENDORS OF THE GENERAL SANTOS CITY PUBLIC MARKET OF COATING TUNA WITH PIG'S BLOOD TO MAKE IT LOOK FRESH

WHEREAS, Section 11, Article II of the 1987 Constitution provides that the State values the dignity of every human person and guarantees full respect for human rights;

WHEREAS, Section 5, Article III of the 1987 Constitution states that the free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed;

WHEREAS, Article II, Title I of Republic Act No. 7394 otherwise known as the "*Consumer Act of the Philippines*" declares that it is the policy of the State to protect the interest of the consumer, promote general welfare, and establish standards of conduct for business and industry. Towards this end, the State shall implement measures to achieve the following objectives:

(a) protection against hazards to health and safety;

(b) protection against deceptive, unfair and unconscionable sales acts and practices;

(c) provision of information and education to facilitate sound choice and proper exercise of rights by the consumer;

(d) provision of adequate rights and means of redress; and

(e) involvement of consumer representatives in the formulation of social and economic policies;

WHEREAS, Section 3, Article V of Republic Act No. 11054 or the *Organic Law for the Bangsamoro Autonomous Region in Muslim Mindanao* (OLBRMM/BOL) provides that the Bangsamoro Government shall exercise the power expressly granted, those necessarily implied therefrom, as well as power; necessary, appropriate, or incidental for its efficient and effective governance and those which are essential to the promotion of general welfare. Within its territorial jurisdiction, the Bangsamoro Government shall ensure and support, among other things, the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among its residents, maintain peace and order, and preserve the comfort and convenience of its inhabitants;

WHEREAS, General Santos City is known as the Philippines' Tuna capital, wherein tons of fresh tuna are delivered by several fishermen;

WHEREAS, on May 15, 2023, the General Santos City Market Vendor's Association (GSCMVA) uncovered a deceitful practice in which several market vendors were found coating tuna fish slices with pig's blood to make the goods appear fresh;

WHEREAS, the market inspection team caught several vendors in the act of selling said fish slices with a thin coating of pig's blood at General Santos City's Public Market. Plastic packs of pig's blood were seized from the vendors involved;

WHEREAS, the Local Government Unit (LGU) of General Santos City ordered the four (4) vending stalls in the market that were found smearing pig's blood on the fish to stop operating and close their stalls, pending the outcome of the disciplinary proceedings against them;

WHEREAS, Muslims are prohibited by their religion from consuming pork or any food containing any derivates of pork since it is *haram* or forbidden. The consumption of those which are *halal*, or food or products that are permissible according to Islamic law, is of utmost importance to Muslims;

WHEREAS, the practice of mixing pig's blood with tuna is not only a deceptive practice, but it also contaminates the fish meat, rendering such unfit for consumption by Muslims;

WHEREAS, in a predominantly Christian country like the Philippines, products containing pork are abundant in the market. This is the main reason why Muslims in the Philippines are very particular with the food they consume;

WHEREAS, the importance of respecting one's religion, which includes the consumption of *halal* products for Muslims, must be recognized. The unscrupulous business practice of using pig's blood on the tuna to make it look fresh is a blatant offense and a form of disrespect to the Muslim community;

WHEREAS, Muslims were affected by this practice from inside and outside of General Santos City, including those from the Bangsamoro Autonomous Region in Muslim Mindanao;

WHEREAS, there is a need to conduct an investigation towards this matter to give justice to the affected Muslim consumers to ensure that the constitutional right of free exercise of religion is protected, to recommend the prosecution and punishment of those who may be found guilty, and to prevent another instance like this from happening again;

WHEREAS, the Bangsamoro Human Rights Commission (BHRC) is the human rights institution of the Bangsamoro, which shall promote and protect human rights, and during armed conflict, uphold international humanitarian law;

WHEREAS, the Ministry of Trade, Investment and Tourism (MTIT) is mandated to implement laws, programs, and projects on trade, investment, and tourism in the Bangsamoro Autonomous Region;

WHEREAS, it is imperative for the Bangsamoro Government, through the BHRC and MTIT, to act in order to maintain a society where understanding and respect of each other's religion reigns. It is not only a matter of public health but also of religious sensibilities:

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the BTA Parliament, To urge the Bangsamoro Government through the BHRC and the MTIT to bring justice to the affected Muslim consumers of the practice of some vendors of the General Santos City Public Market of coating tuna with pig's blood to make it look fresh.

RESOLVED, FURTHER, That a copy of this Resolution be furnished to the BHRC and the MTIT, for information and appropriate action.

ADOPTED, *Dhul Hijjah* 08, 1444/June 26, 2023.

Certified Correct:

PROF. RABY B. ANGKAL
Secretary-General

Attested:

ATTY. PANGALIAN M. BALINDONG
Speaker

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